

Royal Society of New Zealand Te Apārangi

Policy Statement

The Royal Society of New Zealand (staff, volunteers and contractors) is fully committed to safeguarding the welfare of all children in its care. We recognise the responsibility to promote safe practice and wellbeing as well as to protect children from harm, abuse and exploitation while participating in our activities and the activities of our contractors.

Staff, volunteers and contractors will work together to embrace difference and diversity and respect the rights of children and young people. For the purposes of this policy and associated procedures a child is recognised as someone under the age of 17 years (who is neither married nor in a civil union).

This policy is based on the following principles:

- The welfare of children is the primary concern.
- All children, whatever their age, culture, disability, gender, language, ethnicity, socio-economic status, religious belief and/or sexual identity have the right to protection from all forms of harm and abuse.
- Child protection is everyone's responsibility.
- Children have the right to express views on all matters which affect them, should they wish to do so.

Policy Objectives

The aim of this policy is to promote good practice through:

- respecting and promoting the rights, wishes and feelings of children;
- promoting and implementing appropriate procedures to safeguard the well-being of children and protect them from abuse;
- recruiting, training, supporting and supervising staff, members, volunteers and contractors to adopt best practice to safeguard and protect children from abuse and to reduce risk to themselves;
- requiring staff, members, volunteers and contractors to adopt and abide by the Child Protection Policy and procedures;
- responding to any allegations of misconduct or abuse of children in line with the Policy and procedures as well as implementing, where appropriate, the relevant disciplinary and appeals procedures; and
- regularly monitoring and evaluating the implementation of this Policy and procedures.

Procedures

1. Screening

As part of our duty of care, we must ensure that suitable and appropriate employees, volunteers and contractors (including parents) are engaged to work with children. When recruiting people to engage with children we will ensure that there is a robust recruitment process that includes:

- creating a role description;
- developing candidate specifications;
- advertising the position;
- an application process;
- following up on referees;
- interviewing; and
- screening (e.g., police vetting).

2. Appointing a Child Protection Officer

A Child Protection Officer (CPO) shall be appointed to manage child protection issues by:

- ensuring that child protection procedures are understood and adhered to by all;
- raising awareness within the organisation;
- establishing and maintaining a complaints procedure;
- regularly reporting to the Council;
- acting as the main contact for child protection matters;
- keeping up-to-date with developments in child protection legislation;
- maintaining confidential records of reported cases and any action taken; and
- regularly monitoring and reviewing existing policies and procedures.

3. Good Practice Protocols

The following protocols provide guidance to those working with children by outlining good practice and establishing boundaries in a range of situations.

- *Applying a child-centred approach where all children are treated equally and with dignity*

Activities should be appropriate for the age and development of the children in your care.
Ensure feedback to children is about their performance and not of a personal nature.
Use positive and age-appropriate language when talking to children and in their presence.

- *Creating a safe and open working environment*

Ensure that all physical contact with children is relevant and appropriate to the activity.
Seek permission to touch when doing the above.
Do not engage in any intimate, over-familiar or sexual relationships with people under the age of 18 years.

Ensure that any filming or photography of children is appropriate. (Obtain consent prior to filming or photographing and explain purpose, e.g., to promote course, etc).
Request parental consent before transporting young people in a vehicle. (Ensure vehicle is insured and has a current WOF and everyone wears a seatbelt.)
Ensure you have parental consent to administer first aid if required.
Do not use alcohol in the presence of children and do not offer alcohol to children under any circumstances.
Do not engage in communication on a one-to-one basis through social media or email other than relevant coach/trainee feedback or administration.
Do not allow parents, coaches, other children, or spectators to engage in any type of bullying behaviour (this includes cyber bullying).
Do not engage in any bullying activity.

- *Avoiding situations where you are alone with a child*

Avoid private or unobserved situations.
Avoid entering changing rooms. If you must enter, knock and announce yourself and try to have at least one other adult with you.
Avoid driving a child unaccompanied.
Do not invite or encourage children to your home.
4. Dealing with allegations, responding to concerns
In accordance with the Society's responsibility to act on any serious concerns, the following should be brought to the attention of the CPO.
Any instance where policy is breached or good practice protocols are not followed;
Any disclosure by a child that abuse or harm is occurring;
Any suspicions or concerns about a child being subject to abuse or neglect.

- *Where concerns about poor practice are reported*

Poor practice involves actions that are contrary to the good practice protocols provided by our organisation and increase the risk of harm to children.
Initial concerns should be discussed with your CPO (in the absence of a CPO the Council or Chief Executive of your organisation should be notified).
Consider the allegation and where there is a legitimate concern provide a written notice to the individual(s) involved.
If the poor practice is continued or there is repeated poor practice following a written notice then enact disciplinary procedures. This may include expulsion from this organisation.
Consider actions across all circumstances, for example – classroom, off road and on road training situations.

- *Where abuse or neglect is suspected or reported*

The welfare and interests of the child or young person are the first and paramount considerations. Information on abuse and neglect may be found at
<http://childrensactionplan.govt.nz>.

What is abuse?

The harming (whether physically, emotionally, or sexually), ill-treatment, neglect or deprivation of a child.

What is neglect?

The persistent failure to meet a child's basic physical or psychological needs, leading to adverse or impaired physical or emotional functioning or development.

Identifying possible abuse or neglect:

Child, Youth and Family's has developed the *Working Together* guide on inter-agency working to identify and respond to potential abuse and neglect. <http://www.cyf.govt.nz/documents/about-us/publications/27713-working-together-3-0-45ppi.pdfU5T>

The Ministry of Health has also made guidance available in the health sector:

<http://www.health.govt.nz/our-work/preventative-health-wellness/family-violence/family-violenceguidelines>

When responding to possible abuse or neglect:

Ensure the child is safe from immediate harm.

Consult immediately with nominated CPO/person in charge.

As soon as possible, record accurately and appropriately the information received.

Records should be factual (not opinion or hearsay) and concise and include:

- i. The nature of the allegation;
- ii. Who noticed/disclosed the abuse and their relationship to the child;
- iii. Details of any witnesses;
- iv. Signs and symptoms noted (including behavioural change);
- v. Any particular incidents with dates, times and places (if possible);
- vi. Any action taken.

Consult with others as necessary – do not work alone.

Avoid questioning the child beyond what has already been disclosed.

Do not question or counsel the alleged offender.

Do not investigate/presume expertise unless very experienced and qualified to do so.

Notify Child Youth and Family or the Police promptly Under S15 of the Children, Young persons and Their Families Act 1989, any person who believes that a child is being or is likely to be harmed, ill-treated, abused, neglected, or deprived may report the matter to Child Youth and Family, or to the Police..

Policy Review

This Policy and Procedures will be regularly reviewed in accordance with changes in legislation and guidance on the protection of children; and following any issues or concerns raised about the protection of children within the Royal Society of New Zealand programme; and in all other circumstances, at least every three years.

Additional Guidance

The Royal Society of New Zealand will:

- require that all providers of services we contract with or fund, either have a child protection policy or where it is not practical to have such a policy, agree to abide by the Society's Child protection Policy;
- have access to a register of every child involved with any group the Society is working with directly including relevant medical details and have a contact name and number accessible in case of emergencies;
- treat everybody with respect;
- set an example we would wish others to follow;
- where possible consider activities that involve more than one adult being present or within sight and hearing of others;
- be aware that on occasions our actions may be misinterpreted by others even if they were well intentioned;
- respect a child's right to personal privacy;
- provide time and attention for children to talk to us;
- encourage children to respect and be courteous to others;
- intervene to stop any inappropriate verbal or physical behaviour;
- ensure that any suspicions or allegations of abuse are REFERRED not INVESTIGATED;
- only refer and seek support from other agencies as identified under the child protection policy.

Appendix 1: RELEVANT LEGISLATION

There are numerous pieces of legislation relating to the protection of children under 18 years that may have impact.

Vulnerable Children Act 2014

Child protection policies and children's worker safety checking are required under this Act.

Children, Young Persons and Their Families Act 1989

Individuals who report suspected child abuse or neglect are protected from civil, criminal and disciplinary proceedings.

Privacy Act 1993

Sports clubs gather certain personal information about members. The Privacy Act governs the collection and use of personal information where a person's identity is apparent from the information.

Crimes Amendment Act – Protection of Children

The key purpose of this amendment to the Crimes Act 1961 is to ensure that children are adequately protected from assault, neglect and ill-treatment.

The amendment places greater responsibility on adults (parent or persons in place of a parent) who have actual care or charge of a child to take reasonable steps to protect that child from injury. While '*a person in place of a parent*' is not defined in the Act it appears possible that sports club personnel could at times be considered to be '*a person in place of a parent*'. For example, when taking children away to an event or tournament.

The amendment also compels people who live with a child and those who are in frequent contact with children and know, or ought to know, that the child is at risk of death, grievous bodily harm or sexual assault to take reasonable steps to protect the child from that risk.

Other relevant legislation includes:

Income Tax Act 2007;

Minimum Wage Act 1983;

Equal Pay Act 1972;

Smoke Free Environments Act 1990;

Sale of Liquor Act 1989;

Human Rights Act 1993;

New Zealand Bill of Rights Act 1990; and Care of Children Act 2004.